

25STCV19058 25STCV19058

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCV19058 Hearing Date: September 23, 2026 Dept: 309

Superior Court of California

County
of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

BRAD
SUMMERS

vs.

E&B
NATURAL RESOURCES

Case No.: 25STCV19058

Hearing
Date: September 23, 2026

Defendant's
demurrer to the SAC is SUSTAINED. Defendant's demurrer is SUSTAINED, WITH 10
DAYS LEAVE TO AMEND, as to the first and second causes of action, and
SUSTAINED, WITHOUT LEAVE TO AMEND, as to the third cause of action.

On 7/1/2025,

pro per Plaintiff Brad Summers (Plaintiff) filed suit against E&B Natural Resources. On 3/5/2026, Plaintiff filed a second amended complaint (SAC), alleging: (1) breach of written contract; (2) violation of Business and Professions Code section 17200; and (3) declaratory relief.

On
4/7/2026, Defendant demurred to the SAC.

Discussion

Defendant
argues that Plaintiff's claims are insufficiently pled.

As
for the first cause of action, Defendant argues that Plaintiff does not adequately allege performance of a condition precedent. More specifically, Plaintiff alleges that E&B breached the Agreement by failing to participate in the rate adjustment process and failing to pay adjusted rent since "at least July 2, 2021." (See SAC, ¶¶ 9, 15.) However, rent adjustment is not an automatic process. Rather, the Agreement provides for an extensive rental review mechanism, which is triggered only "[u]pon request of Lessor." (Agreement, at § 3.) Importantly, such request must be made at least sixty days before the end of each five-year period immediately preceding the commencement of the five-year period for which the rental is to be established. (Id.)

Plaintiff
alleges in the SAC an entitlement to increased rents since "at least July 2, 2021." (SAC, ¶¶ 9, 15.) However, the verified original complaint alleged that no request for rent review was made until November 1, 2024:

Defendant was
required to provide an appraisal of the land to determine "fair market value" pursuant to the lease every five years subsequent to the Lease executed in 1966 upon Lessor's request. It was not until recently that Lessee and its successors have failed to conduct or obtain appraisals every five years as required by Paragraph 3 of the Lease since its execution in 1966 when requested by Lessor in November 2024.

(Compl., ¶
3.5.)

“The general rule ... is that material factual allegations in a verified pleading that are omitted in a subsequent amended pleading without adequate explanation will be considered by the court in ruling on a demurrer to the later pleading.” (Shoemaker v. Myers (1990) 52 Cal.3d 1, 12- 13.) A plaintiff can avoid the effect of earlier admissions by including in the complaint a satisfactory explanation why the earlier admissions are incorrect; absent such explanation, however, the self-destructive allegations in the earlier pleading or discovery response are “read into” the complaint, and allegations inconsistent therewith are treated as sham and disregarded. (Owens v. Kings Supermarket (1988) 198 Cal.App.3d 379, 384; Lockton v. O’Rourke (2010) 184 Cal.App.4th 1051, 1061.)

The Court sustains Defendant’s demurrer to the first cause of action, with 10 days leave to amend to allow Plaintiff to allege facts which could show this is not a sham pleading. To the extent Plaintiff argues that he does not seek damages for pre-February 2025 periods, Plaintiff must clarify the nature of his allegations in the amended pleading itself.

In light of this, the Court also sustains Defendant’s demurrer to Plaintiff’s UCL claim.

Lastly, the Court finds Plaintiff’s declaratory relief claim to be duplicative of the breach of contract claim, and thus sustains Defendant’s demurrer to this cause of action without leave to amend.

Based on the foregoing, Defendant’s demurrer to the SAC is sustained. Defendant’s demurrer is sustained, with 10 days leave to amend, as to the first and second causes of action, and sustained, without leave to amend, as to the third cause of action.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.

Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.